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Case Name: “Janine” Chun Lu v. Marc Goubert et al.

Case No.: 23CV428070

Defendants Marc Goubert (“Goubert”), Samuel Arvayo, and Serena Arvayo (collectively, “Defendants”) demur to the second, third, fourth, and fifth causes of action alleged in the first amended complaint (“FAC”) filed by “Janine” Chun Lu (“Lu”).

1. Second Cause of Action: Private Nuisance

The court SUSTAINS Defendants’ demurrer to the second cause of action with 10 days’ leave to amend. “It is well established in this state, as in other jurisdictions, that a landlord is not liable for acts of negligence of tenants.” (*O’Leary v. Herbert* (1936) 5 Cal.2d 416, 418 (*O’Leary*)). A “landlord is not liable for the consequences to others of a nuisance in connection with property in the possession and control of a tenant unless the landlord authorized or permitted the act which caused it to become a nuisance occasioning the injury.” (*Id.* at p. 419; see also *Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1373 [“Generally, a landlord is not responsible to other parties for the misconduct or injurious acts of his tenant to whom his estate has been leased for a lawful and proper purpose when there is no nuisance . . . at the time of the leasing. . . . To bring liability home to the owner of real property . . . the nuisance must be one which is in its very essence and nature a nuisance at the time of the letting, and not something which is capable of being thereafter rendered a nuisance by the tenant. . . .”], internal citations and quotation marks omitted.) “It has long been the law in California that [n]ot only is the party who maintains the nuisance liable but also the party or parties who create or assist in its creation are responsible for the ensuing damages.” (*City of Modesto Redevelopment Agency v. Superior Court* (2004) 119 Cal.App.4th 28, 38 (*City of Modesto*), internal quotation marks and citation omitted.)

The FAC does not allege that Goubert directly authorized or otherwise participated in any alleged nuisance. Nor does it allege that Goubert created or assisted in creating any alleged nuisance. Rather, it alleges that “Sam Arvayo and Serena Arvayo created and maintained a nuisance by the conduct described in the General Allegations, substantially and unreasonably interfering with Plaintiff’s use and enjoyment of her property. Defendant Marc Goubert maintained and perpetuated the nuisance by receiving actual notice, possessing legal authority to abate it, yet deliberately refusing to act while continuing to profit from rent payments.” (FAC, ¶¶ 67-68.)

The court is not persuaded by the authorities relied on by Lu in opposition. (Opposition, pp. 3:24-4:9.) *Day v. Lupo Vine Street, L.P.* (2018) 22 Cal.App.5th 62 (*Day*) involved a premises liability negligence action and “a dangerous condition on the land,” not nuisance

liability. (*Day supra*, 22 Cal.App.5th at p. 69; see also *id.* at p. 66 [“The question presented in this case is: Does a commercial landlord who leases space to an operator of a health studio owe a duty under this statute or the common law to acquire and maintain an AED at the space or ensure that the operator does so?”].) In *Lussier v. San Lorenzo Valley Water Dist.* (1988) 206 Cal.App.3d 92 (*Lussier*), the Court of Appeal held that “a possessor of land is no longer absolutely immune from *nuisance* liability for injuries caused by natural conditions.” (*Lussier, supra*, 206 Cal.App.3d at p. 101, emphasis original.) In *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903 (*Stoiber*) a tenant sued a landlord and the Court of Appeal held both that an “[a]ppellant’s tenancy is a sufficient property interest to give her standing to bring an action based on nuisance” and the “fact that the defendants’ alleged misconduct consists of omission rather than affirmative actions does not preclude nuisance liability . . .” (*Stoiber, supra*, 101 Cal.App.3d at p. 920.) The circumstances in *Day*, *Lussier*, and *Stoiber* are not present here.

2. Third Cause of Action: Nuisance Per Se

The court SUSTAINS Defendants’ demurrer to the FAC’s third cause of action with 10 days’ leave to amend. “A nuisance per se arises when a legislative body with appropriate jurisdiction, in the exercise of the police power, expressly declares a particular object or substance, activity, or circumstance, to be a nuisance. . . . [T]o rephrase the rule, to be considered a nuisance per se the object, substance, activity or circumstance at issue must be expressly declared to be a nuisance by its very existence by some applicable law.” (*County of Sacramento v. NKS Real Estate Holdings, Inc.* (2026) 119 Cal.App.5th 390, 402, internal citation and quotation marks omitted.) “The law must declare the circumstances existing on the property to be a nuisance without the need for further inquiry.” (*Ibid.*, internal citation and quotation marks omitted.)

Lu appears to concede that the FAC’s third cause of action does not comply with this standard. (Opposition, p. 9:1-5 [“Plaintiff concedes the technical deficiency Defendants identify in the Third Cause of Action for Nuisance Per Se. The FAC cites ‘San Jose Municipal Code, Chapter 10.16 et seq.’ without identifying the specific ordinance section, the applicable standard, or tying the violation to each defendant’s specific conduct.”].)

3. Fourth Cause of Action: Negligence

The court SUSTAINS Defendants’ demurrer to the fourth cause of action with 10 days’ leave to amend. “The essential elements of a cause of action for negligence are: (1) the defendant’s legal duty of care toward the plaintiff; (2) the defendant’s breach of duty – the negligent act or omission; (3) injury to the plaintiff as a result of the breach – proximate or legal cause; and (4) damage to the plaintiff.” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1103, internal citations omitted.)

The court agrees with Defendants that the FAC fails to plead facts establishing that Goubert owed a legal duty to Lu. (Memorandum of Points and Authorities in Support of Demurrer (“MPA”), p. 9:5-11.) “Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person . . .” (Civ. Code § 1714, subd. (a); see

also *Parsons v. Crown Disposal Co.* (1997) 15 Cal.4th 456, 472-473 [“[D]uty is not an immutable fact of nature but only an expression of the sum total of those *considerations of policy* which lead the law to say that the particular plaintiff is entitled to protection. . . .”], internal citations and quotation marks omitted, emphasis original.)

Lu argues that Goubert owes a duty to Lu under *St. John v. Schaeffler* (2025) 109 Cal.App.5th 1146 (*St. John*) and *Day v. Lupp Vine Street, L.P.* (2018) 22 Cal.App.5th 69 (*Day*). (Opposition, p. 6:5-22.) In *Day*, the facts at issue involved a purportedly “dangerous condition” and the Court of Appeal noted the “existence of a duty by landowners to maintain property in their possession and control in a reasonably safe condition. However, acknowledgment of the broad proposition that landowners have a duty to exercise reasonable care to maintain their property in a safe condition provides scant guidance to a court that must determine the existence of the landlord’s duty in a particular case. With regard to landlords, reasonable care ordinarily involves making sure the property is safe at the beginning of the tenancy, and repairing any hazards the landlord learns about later.” (*Day, supra*, 22 Cal.App.5th at p. 69, internal quotation marks and citations omitted.) In *St. John*, the Court of Appeal noted that the “consequences of imposing a duty upon landlords are much higher because such a duty would obligate landlords to micromanage their leased properties . . . [i]f a dangerous condition on the property arises during the tenancy—and hence while the tenant and not the landlord is in possession and control of the property—the landlord owes a duty of care to third parties . . .” (*St. John, supra*, 109 Cal.App.5th at pp. 1157-1158, internal quotation marks and citations omitted.)

With all of this in mind, the court is inclined to agree with Defendants that these authorities do not establish that Goubert owed a legal duty of care to “take reasonable action to abate the nuisance after receiving actual notice.” (FAC, ¶ 78.) *St. John* and *Day* involved “dangerous conditions” on leased property, and the decisions note that (1) generally the “consequences of imposing a duty upon landlords are much higher because such a duty would obligate landlords to micromanage their leased properties” and (2) with “regard to landlords, reasonable care ordinarily involves making sure the property is safe at the beginning of the tenancy[] and repairing any hazards the landlord learns about later.” (*Day, supra*, 22 Cal.App.5th at p. 69; *St. John, supra*, 109 Cal.App.5th at pp. 1157-1158.)

The FAC does not allege “dangerous conditions” on the property owned by Goubert but rather alleges that Goubert owed a duty to Lu, a neighbor, to “abate” an alleged noise nuisance on leased property. (FAC, ¶¶ 74-80.) This alleged nuisance consisted of “loud vocalizations and screaming” from a “minor child” that had “autism and is nonverbal.” (*Id.* at ¶¶ 18, 28.) Furthermore, the FAC alleges that the “loud vocalizations and screaming” were “not the child’s fault.” (*Id.* at ¶ 29.)

The court is further inclined to agree with Defendants that these allegations essentially duplicate those underlying the second cause of action for nuisance. (MPA, p. 9:12-15 [“Plaintiff simply restates that Defendant allegedly had notice of a nuisance and failed to abate it. Plaintiff cannot avoid the limitations on landlord nuisance liability by re-labeling the same alleged noise nuisance as ‘landlord negligence.’”].) The FAC alleges negligence against Goubert on the basis that Goubert failed to abate a nuisance. (FAC, ¶ 78.) The FAC alleges nuisance against Goubert for maintaining and perpetuating an alleged nuisance by “deliberately refusing to act . . .” (*Id.* at

¶ 68.) Therefore, the court finds that the FAC fails to plead facts sufficient to sustain its fourth cause of action for the same reason it fails to sufficiently plead its second cause of action. (See *O’Leary, supra*, 5 Cal.2d at p. 418; *City of Modesto, supra*, 119 Cal.App.4th at p. 38.)

4. Fifth Cause of Action: Intentional Infliction of Emotional Distress

The court SUSTAINS Defendants’ demurrer to the fifth cause of action with 10 days’ leave to amend. In short, the FAC alleges that Lu communicated with Goubert three times regarding noise complaints that Lu had about property Goubert leased to Samuel and Serena Arvayo before eventually sending Goubert a letter, through counsel, “formally notifying him of the nuisance conditions.” (FAC, ¶¶ 37-40.) The FAC further alleges that Goubert “took no action whatsoever” regarding the alleged nuisance conditions and “actively dismissed Plaintiff’s legitimate complaints.” (*Id.* at ¶¶ 43-44; see also *id.* at ¶¶ 84-85 [alleging that Goubert’s “conduct was extreme and outrageous because he received actual notice, possessed legal authority to remedy the harm, yet deliberately refused to act while gaslighting Plaintiff and profiting from the nuisance. A reasonable person would find it outrageous for a landlord to knowingly allow his property to be used as an instrument of harm while dismissing the victim’s suffering.”].) The court is inclined to agree with Goubert that this alleged conduct does not rise to the level of “extreme and outrageous conduct” such that “it exceed[s] all bounds of that usually tolerated in a civilized community. . . . Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions . . .” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051, internal quotations and citations omitted.)

5. Leave to Amend

Defendants argue that the court should deny Lu leave to amend as to the FAC’s second, third, fourth, and fifth causes of action because Lu has failed to demonstrate that any amendment will cure defects with the FAC and Defendants will be prejudiced if further amendment is granted. (Reply in Support of Demurrer, pp. 9:6-10:12.)

The court acknowledges that a “trial court has wide discretion to allow the amendment of pleadings, and generally courts will liberally allow amendments at any stage of the proceeding. But this policy applies only [w]here no prejudice is shown to the adverse party.” (*Hughes v. Farmers Ins. Exchange* (2024) 107 Cal.App.5th 73, 87, internal citations and quotation marks omitted.) Prejudice exists where the amendment would require delaying the trial. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 (*Magpali*) [“Magpali’s amendment was proposed on the eve of trial, nearly two years after the complaint was originally filed. He did not give an explanation for leaving the Act claim out of the original complaint or bringing the request to amend so late.”].)

However, unlike the plaintiff in *Magpali*, the court is not evaluating a motion or request for leave to amend. The court is evaluating whether to grant leave to amend in sustaining a demurrer. It “is error for a trial court to sustain a demurrer when the plaintiff has stated a cause of action under any possible legal theory. And it is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect

identified by the defendant can be cured by amendment.” (*Gregory v. Albertson’s, Inc.* (2002) 104 Cal.App.4th 845, 850, internal citations and quotation marks omitted.)

The court notes that this is the first time that it appears that an operative pleading filed by Lu has been subject to a pleading challenge. With this in mind, the court further notes that it is not convinced that there is “no reasonable possibility” Lu can amend the FAC to address issues identified above, particularly as to the third cause of action.

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Case Name: *Jaamac v. Yandoc*

Case No.: 26CV485320

On January 26, 2026, plaintiff Maxamuud Jaamac (“Plaintiff”) filed a form complaint against defendant Johnathan Mark Yandoc (“Defendant”), asserting a single cause of action for motor vehicle negligence, and seeking punitive damages. Defendant moves to strike the allegations supporting punitive damages.

The Court agrees with Defendant that the complaint fails to allege facts supporting punitive damages. (See *Jackson v. Johnson* (1992) 5 Cal.App.4th 1350, 1354 (stating that “[s]imple negligence cannot support an award of punitive damages”); see also *Johns-Manville Sales Corp. v. Workers’ Compensation Appeals Bd. (Horenberger)* (1979) 96 Cal.App.3d 923, 931 (stating that “[t]he malice in Civil Code section 3294 is defined as intent to vex, injure, or annoy, or as criminal indifference toward an obligation owed another... [m]ere negligence or recklessness will not suffice”); see also *Palmer v. Ted Stevens Honda* (1987) 193 Cal.App.3d 530, 536 (stating that “[n]either evidence of mere negligence [citations] nor constructive fraud... will support a punitive damages award without a showing of the statutory fraud, malice, or